

## 26PSCV02774 26PSCV02774

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-09-09

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Case Number: 26PSCV02774 Hearing Date: September 9, 2026 Dept: 6

CASE NAME: Luis Antonio Garduno v. Allen Yu

Motion of Kayla Radnia of KR Law, APC to be Relieved as Counsel for Plaintiff Luis Antonio Garduno

### TENTATIVE RULING

The Court GRANTS the motion of Kayla Radnia of KR Law, APC to be relieved as counsel for Plaintiff Luis Antonio Garduno. Counsel must submit a completely filled out proposed order prior to the hearing. Counsel must then serve the signed order on Plaintiff and file proof of service of same within five calendar days of this order.

Counsel is ordered to give notice of the Court's ruling within five calendar days of this order.

### BACKGROUND

This is a personal injury case arising out of a motor vehicle accident. On August 10, 2026, plaintiff Luis Antonio Garduno (Plaintiff) filed this action against defendant Allen Yu (Defendant) and Does 1 through 50, alleging a single cause of action for negligence.

On August 18, 2026, Kayla Radnia of KR Law, APC moved to be relieved as counsel for Plaintiff Luis Antonio Garduno. The motion is unopposed.

### LEGAL STANDARD

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted, provided that there is no prejudice to the client, and it does not disrupt the orderly process of justice. (See *Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915; *People v. Prince* (1968) 268 Cal.App.2d 398, 403-407.)

A motion to be relieved as counsel must be made on Judicial Council Form MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).) The requisite forms must be served "on the client and on all parties that have appeared in the case." (Cal. Rules of Court, Rule 3.1362, subd. (d).)

## DISCUSSION

Counsel has submitted a properly completed application, declaration, and proposed order on Judicial Council forms MC-051, MC-052, and MC-053. (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).)

The Court finds that good cause exists and there is no prejudice to Plaintiff, and that the relief sought does not disrupt the orderly process of justice. Based on the foregoing, the Court GRANTS the motion.

## CONCLUSION

The Court GRANTS the motion of Kayla Radnia of KR Law, APC to be relieved as counsel for Plaintiff Luis Antonio Garduno. Counsel must submit a completely filled out proposed order prior to the hearing. Counsel must then serve the signed order on Plaintiff and file proof of service of same within five calendar days of this order.

Counsel is ordered to give notice of the Court's ruling within five calendar days of this order.